

1/22

File No.: EXP202209615

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 27/07/2022, a document was received by this Agency presented by A.A.A. (hereinafter, the complainant), through which a complaint is filed against the AYUNTAMIENTO DE PALMA with NIF P07040001 (hereinafter, AYUNTAMIENTO), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

"[...]

First.- On 22/05/2020, I submitted five documents at a post office. All of them, with identical content, were addressed to five different areas of the Ayuntamiento de Palma. Due to an error by the post office, they were stamped with an entry date of 29/09/2020, although the Ayuntamiento de Palma registered them on 26/05/2020 (...).

Second.- On ***DATE.1, the largest circulation newspaper in the Balearic Islands (***NEWSPAPER.1) published on page 16 a news article that reflected, with almost absolute fidelity, part of the content of the documents I had submitted. My full name appeared in the subtitle of this news article (below the headline) and was repeated in the body of the article. A copy of that page is attached as Annex I. The digital edition of the newspaper, still available, also reflected almost identical text.

On 04/06/2020, the same newspaper published on page 14 a new article that could be presumed to derive from my own writings, publicizing some aspects not addressed the previous day, also with high fidelity. My full name appears again in the body of the article. A copy of that page is attached as Annex II. The digital edition of the newspaper, still available, also reflected almost identical text.

On 07/06/2020, a tweet from journalist Mr. B.B.B., one of the authors of the article in ***NEWSPAPER.1 referenced earlier, appeared. In that tweet, the following text can be read:

"I just read the 30 pages of the report from officer C.C.C. about the supposed irregularities and purge in ***EMAIL.1 ***EMAIL.2. It is already with the Prosecutor's Office of the Balearic Islands. I have just been 'tipped off' that the issue of the hour bank will have repercussions. Judicial, I mean."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/22

That tweet was accompanied by an image that turns out to be a photograph of a copy of one of my five documents. It is attached as Annex III. This would demonstrate, a priori, that access to the document was not partial, but complete.

Third.- It is noted in advance that I have never spoken with any journalist from ***NEWSPAPER.1 about my document and that I did not leak that document. (...)

The five documents submitted were done so at the post office, and the receipt I have for each of them only has the stamp of that post office. On the other hand, the photograph of one of the documents published by the aforementioned journalist in his tweet has 3 stamps. The first, from the post office, dated 29/05/2020; the second, the entry stamp in the registry of the Ayuntamiento de Palma, dated 26/05/2020, with number (...); the third, the internal entry stamp in the Social Justice, Feminism, and LGBTI Area, dated 27/05/2020 (...).

Fourth.- Journalists Mr. B.B.B. and Ms. D.D.D. unnecessarily disseminate my personal data. I am not a public figure nor am I a responsible party of the Local Police of Palma (...).

Fifth.- On 27/10/2021, by decree number (...) from the Councilor for Citizen Security, a disciplinary file was initiated for the alleged commission of two serious offenses and one minor offense derived exclusively from the document I submitted on 22/05/2020 at the post office. There is no error in the date: the initiation is from 27/10/2021, 523 days after the instance that motivates it. (...)

The opinion of the instructor:

[...]

It is considered that there has indeed been a violation of the Data Protection Law, but the victim is the accused himself, a criterion shared with the Office of the Ombudsman for Citizenship.

[...]"

Along with the complaint, the following documentation is provided, among others:

- Photographs, dated 3 and 04/06/2020, of the news published in the newspaper "****NEWSPAPER.1".
- Screenshot of the tweet published on the profile of ***PROFILE.1 along with a brief explanation of what is observed in the published image.
- Copy of the provisional Resolution of the disciplinary file, dated 12/07/2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGDD), on 15/09/2022, the aforementioned complaint was forwarded to the publisher of the mentioned newspaper, HORA NOVA, S.A. and to the AYUNTAMIENTO, for them to respond.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/22

they should proceed with their analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), through electronic notification, was received on 15/09/2022 and 16/09/2022, respectively, as stated in the certificates in the file.

On 13/10/2022, a response letter from the CITY COUNCIL was received by this Agency, in which the following is stated:

"[...]

The information regarding personal data that has been made public was not carried out by the City Council, but rather by a journalist who photographed or published a photograph containing personal data that appears in a document submitted to the municipal Administration, disseminating said photograph and information on a social network via a tweet. (...)

In the news published in the newspaper, only the name of a local police officer appears, without any other identifying personal data (ID number, address, etc.)

[...]

The City Council, in our understanding, is only responsible in this case for its duty to safeguard the documentation in its files as well as to ensure the principle of security of the personal data contained in the files, administrative records of its Municipal Departments.

In the case concerning the reported facts, there is the processing activity of the General Registry of the Area of Citizen Participation and Internal Government, published on the municipal website, in the REGISTER OF PROCESSING ACTIVITIES of the City Council of Palma, although the person responsible for safeguarding the municipal documentation, once the received documentation has been distributed, is the head of the Area to which said documentation is sent.

In the case at hand, we find the peculiarity that Mr. XXXXXXXX did not submit a single document, but rather submitted a total of 5 documents with the same content of 30 pages to the General Registry of the City Council, and instead of doing so in a single document, (...), the following 5 writings with copies of the corresponding documentation were submitted to the General Registry of the City Council of Palma (...)

In the photograph that appears in the aforementioned tweet by the journalist, the entry record no. XXXXXX, Document XXXXXX, is observed, which as can be seen corresponds to one of the aforementioned writings, specifically the document addressed to the Area of Social Justice, Feminism, and LGTBI. Mr. XXXXXXXX also directed a writing to the Ombudsman for Citizens, who initiated the file ***FILE.1, report dated ***DATE.2 of which a copy is attached in Annex I, also communicating the actions taken to the complainant, through a writing dated ***DATE.3.

The Office of the Ombudsman for Citizens requested on this date from the Area of Social Justice, Feminism, and LGTB, as the first implicated, as well as from the General Secretariat of the Plenary and the Mayor's Office, requesting information in this regard and that the action be evaluated to establish the relevant disciplinary and security measures, without any response being recorded from the responsible parties of Social Justice.

Subsequently, on April 21, 2021, once the City Council had appointed its Data Protection Delegate, the Office of the Ombudsman for Citizens sent by email a copy of said file for their knowledge and follow-up as it involved personal data.

On the same day of its receipt, the DPD requested information from the heads of the Area of Social Justice, specifically from the General Director and the Councilor responsible for the Area, without receiving any response from the responsible parties of the Area of Social Justice; all of this was reported to the Mayor's Coordination.

On August 3, 2021, the information request from April 21 of the same year was reiterated by email, again receiving silence in response. (...)

Recently, once the request from the AEPD was received, by the Head of the Social Justice, Feminism, and LGTBI Service, on September 26, 2022, the report attached as Annex II was prepared, from which it is inferred that both the Head of Service and the Councilor to whom the document was delivered were aware of said documentation (the one that originated the action of the AEPD).

It also informs that on June 16, 2020, this documentation was returned to the OAC Backoffice by official letter to be sent to the Area of Finance, Innovation, and Public Function, a date that, on the other hand, only confirms that at the time of the publication of the matter in question – from June 3 to 7 – it was under the custody and responsibility of the Area of Social Justice.

Regarding the nominal identification of the Authority or executive responsible for the processing at the time the events occurred (June 2020), it points out that it was the Councilor in charge of the Area of Social Justice, Feminism, and LGTBI, Mrs. D.D.D., as can be inferred from the reports made both by the Office of the Ombudsman and by the Area of Citizen Security, from the Head of Service of the Social Justice Area itself, and from the Instructor of the disciplinary file AJT 202120479 initiated for this purpose.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/22

It should be noted that both the General Director and the Councilor responsible for the Area resigned from their positions during the first half of 2022, currently lacking any competence in said area of municipal government.

Regarding the preventive measures that have been promoted and proposed by the Data Protection Delegate concerning the duty of fidelity and secrecy, as well as the custody and security of information, they have basically been the following:

- Publication in April 2021, on the Personnel Portal, with the obligation to read and mark that it has been read and understood, of the DECALOGUE OF FUNCTIONS AND OBLIGATIONS of all users, reminding in this document in its section 12 the issue of Confidentiality of information and the duty of secrecy regarding all municipal information, warning of the administrative and criminal responsibilities that may be incurred.
- Various training actions during 2021 and 2022 among municipal staff in order to raise awareness on the topic of data protection, including the aforementioned decalog of functions and obligations.
- Sending of the questionnaire on the Compliance List to all municipal managers, following the model published by the AEPD, via email dated October 4, 2021, reminding that appropriate and effective measures must be applied to demonstrate compliance of the processing activities in order to assess the aspects that must be taken into account during risk analysis and impact assessment procedures, without any record of a response from the Social Justice, Feminism, and LGTBI Area.
- Publications on the municipal Intranet regarding various topics related to awareness and obligations in data protection during 2021 and 2022.

- A written request has been made to the Mayor and also in the Annual Report of 2021 for a series of recommendations (section 12) to those responsible for the processing and security of information, to review the Corporate Security Policy as well as to approve specific policies and conduct a risk analysis and draft the implementation plan for the security policy, approval of the organization of municipal security, appoint a responsible person and STIC committee, as well as to launch the Security Operations Center in order to carry out monitoring and detection of security incidents and other functions; measures that have been publicly announced as having been initiated but have not yet been completed.

Regarding the measures adopted concerning the case presented, it is worth noting:

- Decree of the Mayor ***DECRETO.1 of ***FECHA.4 which initiated disciplinary proceedings against a local police officer.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/22

- The DPD has requested information from the following areas: Social Justice, Mayor's Office, Public Function, and Citizen Security, having obtained the following responses:

[...]"

Along with the document, the following documentation is attached, among others:

- Copy of the document issued by the Ombudsman for Citizenship regarding file ***EXPEDIENTE.1.
- Copy of the Report of the actions carried out by the Social Justice, Feminism, and LGTBI Area in relation to the document submitted by the claimant.
- Copy of the "Declaration on personal data protection" from the City Council of Palma.

On 10/18/2022, a response document from HORA NOVA, S.A. was received by this Agency, stating the following:

"[...]"

1.- The news published by the newspaper "Ultima Hora" on June 3, 2020, and June 4, 2020, is a faithful reflection of the events that occurred and is limited to informing, with absolute veracity, about the five complaints filed by the Local Police Officer of Palma before five different departments of the City Council of Palma (Citizen Security, Treasury, Social Justice, Feminism, and LGTBI) for alleged internal irregularities that occurred within said institution, information whose source, for reasons of professional secrecy, should not be disclosed. It is obvious that, had he wanted to preserve his identity, Mr. XXXXXXXX would not have reported such facts in the manner and form he did.

2.- The tweet from journalist B.B.B. is a simple comment regarding said complaints protected by the fundamental right to freedom of information and expression. Furthermore, the photograph accompanying the aforementioned tweet contains documents that are practically illegible at first glance.

3.- Both the articles from "Ultima Hora" and the tweet from Mr. XXXXXXXX are limited to informing about an absolutely truthful fact, of undeniable general interest and public relevance, without revealing any data other than those appearing in the documents themselves and in which serious internal irregularities within the Local Police of Palma are reported, facts that could constitute serious crimes committed by public officials and reported by a public official, circumstances that make the information absolutely newsworthy and that - within the framework of a reasonable balancing judgment - prioritize the Right to Information over any other conflicting right. (...)

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/22

5.- In any case, both the journalistic articles and the tweet published (more than two years ago) have been deleted from the digital edition and from the social network.

6.- Finally, it should be noted that “Hora Nova” and “Ultima Hora” have at all times provided workers and collaborators with all necessary recommendations to ensure maximum respect for the protection of personal data in accordance with the LOPD, privacy policies, and other current regulations. This has also been done in this specific case regarding any future potential publications that may arise in relation to it.

[...]

Along with the document, the following documentation is provided:

- Cybersecurity audit report, dated 05/05/2022.

- Copy of the Privacy Policy of the medium “***PERIÓDICO.1”.

THIRD: On 25/10/2022, it was verified that the links listed in the complaint related to the digital version of the newspaper “***PERIÓDICO.1” remain active with identifying data of the complainant.

FOURTH: On 27/10/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FIFTH: On 08/12/2022, this Agency received a new document from the complainant stating that “on 04/11/22, decree ***DECRETO.1 was issued by the councilor of the Citizen Security Area of the Palma City Council (notified on 10/11/22), determining the definitive filing of the disciplinary file proposed by the instructor on 07/10/22.” A copy of this resolution is attached.

SIXTH: On 24/02/2023, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against the AYUNTAMIENTO in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Articles 5.1.f) and 32 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified in Article 83.5.a) and 83.4 of the GDPR.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP through electronic notification, was delivered to the AYUNTAMIENTO on 28/02/2023.

SEVENTH: On 10/03/2023, the AYUNTAMIENTO submitted a document, in due time and form, to this Agency stating the following:

“[...]

First.- That the alleged infringement of Article 32 GDPR, classified as serious in accordance with Article 83.4 GDPR, has expired, since according to what is stated in Article 73 of the LOPDGDD, given that more than two years elapsed between the events (May/June 2020) and the complaint submitted by Mr. XXXXXXXX to the AEPD (July 2022), which initiated the file subject to these allegations.

Second.- That the principle of confidentiality established in Article 5.1.f of the GDPR has not been violated by the City Council (...):

1. The complainant, (...) sent 5 documents with copies of the corresponding documentation addressed to 5 different areas of the Palma City Council (Citizen Security Area, Treasury Area, Innovation and Public Function, Mayor's Office, Social Justice, Feminism and LGTBI Area, and Citizen Defender's Office), resulting in this proliferation of documents submitted in paper format leading to returns to the OAC BackOffice as some of the Areas were not competent to resolve what was requested by the complainant. This proliferation of documents hindered the processing and unification of actions among the municipal Areas as well as the control and preservation of their identity.

[...]

3. (...) In this specific case, no access was had to any special or sensitive category data that required special protection, as no extraordinary restrictions needed to be applied since the data contained in that documentation were merely identifying data (name and surname, ID number, and address – being the address provided that of the complainant's workplace).

4. On the other hand, it should be noted the existence of Law 19/2013, on transparency, access to public information, and good governance, which aims for transparency in public activity and regulates and guarantees the right of access to information, with the media having the right to public information of the documents or contents held by the Administration, with the document subject to the file being none of those that may be limited nor any of the specially protected data referred to in Article 15 of Law 19/2013.

[...]

6. (...) It should be noted that in our case, the possible breach of confidentiality would only have

affected merely identifying data of the complainant without this constituting any security violation, but rather a specific incident due to the failure to dissociate the data of the responsible person. None of the situations associated with risks to the guarantees of the rights and freedoms of the interested parties contemplated in Recital 75 of the GDPR are present.

7. That the Palma City Council has promoted and proposed various measures regarding the respect for the duty of fidelity and secrecy as well as the custody and security of information (...)."

EIGHTH: On 07/06/2023, the instructing body of the procedure agreed to open a period of evidence, considering the complaint incorporated.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/22

filed by the claimant and their documentation, as well as the allegations regarding the initiation agreement of the present sanctioning procedure submitted by the CITY COUNCIL and the accompanying documentation.

Furthermore, it requested the CITY COUNCIL to provide information and/or documentation related to the Resolution of the reserved information opened by Decree ***DECRETO.1, dated 27/02/2022, which initiates a reserved information file; as well as to clarify the discrepancy in dates regarding the initiation date of the reserved information file, as there is no agreement between the date indicated in the allegations submitted (27/02/2022) and the date indicated in the response to the transfer of the complaint (27/09/2022).

On 21/06/2023, the CITY COUNCIL submitted a response to this Agency, in which it provides:

- Document number 1: a copy of the Resolution of the reserved information opened by Decree ***DECRETO.1, dated 27/02/2022, which initiates a reserved information file. It is signed on 12/12/2022.

- Document number 2: translation from Catalan to Spanish of part of the Resolution.

NINTH: On 21/08/2023, the Director of the Spanish Agency for Data Protection agreed to appoint D./Dña. E.E.E. as the instructor, replacing D./Dña. F.F.F.

TENTH: On 20/10/2023, the instructing body prepared a resolution proposal in which it proposed to sanction the CITY COUNCIL with a warning for the violations of articles 5.1.f) and 32 of the GDPR, classified in articles 83.5 and 83.4 of the GDPR.

The resolution proposal was notified to the CITY COUNCIL through electronic means on 23/10/2023, as evidenced by the acknowledgment of receipt in the file. After the period granted for the formulation of allegations, this Agency has not received any allegations from the CITY COUNCIL.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The complaint states that, on 22/05/2020, the claimant submitted five documents with identical content addressed to five different areas of the CITY COUNCIL at the Post Office. The entry stamp at the Post Office is dated ***FECHA.4, while at the CITY COUNCIL it is dated 26/05/2020.

SECOND: On ***FECHA.1, a news article titled "****TÍTULO.1" with the subtitle "****SUBTÍTULO.1" was published in the newspaper "****PERIÓDICO.1". The content of the publication details the name and surname of the claimant, their status as a police officer, and part of the content of the mentioned documentation.

The article is signed by B.B.B. and C.C.C.

THIRD: On 04/06/2020, a news article titled "****TÍTULO.2" was published in the newspaper "****PERIÓDICO.1". The content of the publication again includes the name and surname of the claimant, as well as part of the content of the documents.

The article is signed by D.D.D.

FOURTH: On 07/06/2020, the following message was published on the Twitter profile of B.B.B.

(XXXXXXX):

“***MENSAJE.1.”

Along with the message, there is a photograph showing several documents on a desk, in which some personal data of the claimant, such as their ID number, second surname, and address for notification purposes, are legible.

FIFTH: Annex I provided by the CITY COUNCIL along with the response to the transfer is titled "Defensora Ciutadania. Expediente ***EXPEDIENTE.1", is unsigned, and indicates that it is dated 27/07/2020. The content of the document states (translation by this Agency from the original in Catalan):

"In conclusion, it is absolutely unacceptable that this type of document is leaked, published on social media, and attached with a link to the Twitter account of the city council and the Local Police without any consequences that restore or preserve the rights of citizens. Today, 27.07.2020, it is still posted. It is not, in our opinion, a matter of freedom of expression but of non-compliance with the obligation to safeguard documents and of violating the personal data protection of citizens, which generates evident defenselessness.

For all these reasons, it is deemed appropriate to communicate the facts to the Area of Social Justice, Feminism, and LGTBI, as the first implicated, and to the Cabinet of Batlia and the General Secretariat of the Plenary as the final responsible parties for document custody, all for their knowledge and effects, requesting that actions be evaluated to resolve the situation and to establish disciplinary and security measures that ensure the safety of information and personal data."

SIXTH: In Annex II, signed on 26/09/2022, provided by the CITY COUNCIL along with the response to the transfer, the response issued by the Head of the Social Justice, Feminism, and LGTBI Service regarding who safeguards the documentation and who has had access since it was registered in their Area is included.

SEVENTH: In Annex IV, undated and unsigned, accompanying the response to the transfer from the CITY COUNCIL, titled "Declaració en matèria de protecció de dades personals" (Declaration on personal data protection), it is

11/22

lists the functions and obligations of the workers of the CITY COUNCIL regarding the protection of personal data. At the beginning of the aforementioned document, it details (translation by this Agency of the original in Catalan):

"DECALOGUE OF BASIC POINTS.

1. It is necessary to access with the username and password provided by the entity, which identifies you personally, and sharing or noting it in another place that allows access to another person is not permitted under any circumstances.
2. Any telecommunications, computer system, or support that the entity has made available to you for the performance of professional tasks cannot be used for any personal or private purpose.
3. Users are not allowed to download, install, or incorporate any computer program or service to avoid violating data protection regulations and the inherent intellectual property rights.
4. It must be ensured that only expressly authorized persons can access the information. Each worker is responsible for not leaving documents on desks, shelves, or in spaces in such a way that they can be seen by third parties. Care must be taken not to leave documentation with sensitive information in shared locations.

[...]

9. The data protection regulations and confidentiality regarding all information of the City Council must be scrupulously complied with. Responsibilities may be demanded that may arise from the breach of professional secrecy by employees.

[...]"

In point 1 of the section "Functions and obligations of users," it states:

"1. The processing of personal data implies that the entity must apply the necessary technical and organizational measures to guarantee the confidentiality, availability, and integrity of the data, complying with the legal requirements set forth by data protection regulations.

It should be noted that the entity is responsible for the processing of the data; that the data subject is the sole owner; that, therefore, the entity does not have free disposal over the data, and that in many cases the information in question may not be subject to protection by the same regulations because it

is not personal data, but its confidentiality must be guaranteed for reasons of intellectual or industrial property, or due to contractual agreements.

For these reasons, it is necessary that any user who processes data or confidential information scrupulously complies with these functions and obligations and alerts their supervisor if they detect any non-compliance.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

12/22

In point 11 of the aforementioned document, it indicates:

“11. Incidents and security breaches.

Incident.

Any act or omission that results in the accidental or voluntary, lawful or unlawful destruction, loss, alteration, or unauthorized access or communication of any type of information for which the entity is responsible, whether digital or analog, is considered an incident. (...)

Security breach.

A security breach is considered any of the incidents mentioned above that relates to personal data and poses a risk to individuals. In general terms and not exclusive, the following situations are considered security breaches:

- Violation of the confidentiality of personal data (sending an email to an unauthorized recipient, losing a mobile phone, losing a paper file, etc.).
- Alteration of the integrity of personal data (action of a cryptolocker type computer virus, erroneous data crossover, etc.).
- Loss of personal data (whether in paper or electronic format).

Any non-compliance with the regulations established by this security document and any anomaly that affects or may affect the security of the personal data of the institution is considered a security breach. (...)

In point 12 of the aforementioned document, it details:

“12. Confidentiality of information and duty of secrecy.

Any non-compliance with the regulations established by this security document and any anomaly that affects or may affect the security of the personal data of the institution is considered a security breach. Users of information systems or with access to any data or information must maintain maximum confidentiality indefinitely and not disclose directly or through third parties or companies, under their responsibility, data, documents, methodologies, keys, analyses, programs, and other information to which they have access during their employment relationship with the institution, both in material and electronic format. This obligation remains in effect after the employment relationship with this entity ends.

Failure to comply with these obligations may constitute a crime of disclosure of secrets (art. 197 of the Penal Code).”

EIGHTH: On 12/12/2022, the CITY COUNCIL approved Decree No. ***DECREE.1 in which the following was agreed:

“First. To archive the proceedings of the reserved information file without further processing, in accordance with article 17.5 of Decree 32/2020 of October 5, which regulates the disciplinary regime of the public function of the Administration of the Autonomous Community of the Balearic Islands, given that the report of the Instructor

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

13/22

concludes that there is no credible evidence of a disciplinary offense committed by any specific public

official.

Second. Notify this Decree to Mrs. ***INSTRUCTOR.1, instructor of a disciplinary file from the Citizen Security Area.”

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data; since the CITY COUNCIL carries out, among other processes, the collection, registration, and storage of the following personal data of individuals: name and surname or identity document, among others.

The CITY COUNCIL carries out this activity in its capacity as the data controller, as it is the one that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 4, paragraph 12 of the GDPR broadly defines “personal data breach” as “a breach of security that results in the accidental or unlawful destruction, loss, alteration of, or unauthorized disclosure of, or access to, personal data transmitted, stored, or otherwise processed.”

In this case, there is a breach of the security of personal data under the circumstances indicated above, categorized as a confidentiality breach, as there was unauthorized access to personal data processed by the CITY COUNCIL by third parties not concerned. In this regard, the GT29 understands that a breach of confidentiality occurs when there is an unauthorized or accidental disclosure of personal data, or access to the same.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in Article 5.1.f) of the GDPR. Meanwhile, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

III

Claims made

This Agency has no record that the CITY COUNCIL has submitted a written statement of claims against the proposed resolution.

However, as already indicated in the proposed resolution, regarding the claims made by the CITY COUNCIL against the initiation agreement of the present sanctioning procedure, the following considerations were made.

1. On the prescription of the infringement of Article 32 of the GDPR.

The CITY COUNCIL claims that the alleged infringement of Article 32 of the GDPR, classified as serious, is time-barred as two years have passed between the reported facts (May/June 2020) and the filing of the complaint (July 2022).

In this regard, this Agency wishes to remind that Article 32 of the GDPR is infringed when the detected security measures do not exist or are deficient, regardless of the request made by the complaining party. That is, even if the complaining party had not filed a complaint with this Agency, the security measures of the infringing party would be, in themselves, inadequate.

Therefore, the statute of limitations for the infringement of Article 32 of the GDPR, classified as serious, does not begin to run at the moment the security breach occurs, but from the time the technical and organizational measures implemented are appropriate to ensure an adequate level of security commensurate with the risk. Until such measures have been adopted and, consequently, the

infringing conduct has ceased, the statute of limitations does not begin to run.

As the CITY COUNCIL pointed out in its written claims regarding the initiation agreement, the measures related to the duty of fidelity and secrecy, custody, and security of information were adopted after the reported facts. Specifically, the publication of the Decalogue of functions and obligations of municipal staff published on the Personnel Portal and on the Intranet, the carrying out of training actions in data protection; as well as the publication of the corresponding Treatment Activities, contracts of assignment between controllers and processors, confidentiality contracts, Organic Regulation of the Full City Council warning of the confidentiality duty of Councilors, among others. In relation to the above, it is necessary to highlight that the CITY COUNCIL only provides documentary evidence that proves the adoption of the "Declaration on data protection." In this document, as stated in the proven facts, the obligations and duties of the CITY COUNCIL staff are enumerated.

15/22

in relation to information systems or access to the same in order to ensure the adequate compliance with personal data protection regulations.

Regarding the investigative actions carried out by the AYUNTAMIENTO to clarify the reported facts, this Agency wishes to point out that the filing of the reserved information file due to lack of evidence does not imply the non-existence of an infringement in terms of personal data protection. Indeed, as derived from the Resolution of 12/12/2022, the investigation does not focus on determining whether or not there has been a leak of the personal data of the claimant, but rather on identifying which employee of the AYUNTAMIENTO may have leaked the information.

Consequently, it cannot be considered that the AYUNTAMIENTO, at the time of the reported events, had appropriate technical and organizational measures in place to ensure a level of security adequate to the risk as required by Article 32 of the GDPR. Such measures, as the entity has rightly acknowledged, were implemented after the reported events, making the date set by the AYUNTAMIENTO for the start of the limitation period incorrect.

For all the above reasons, this Agency dismisses this allegation.

2. Regarding the infringement of Article 5.1(f) of the GDPR.

The AYUNTAMIENTO claims that the submission of several writings by the claimant to various areas hindered the control and preservation of their identity, but that, since they only involve identifying personal data, the data accessed does not require special protection.

In this regard, this Agency wishes to point out that the current regulations on personal data protection aim to guarantee effective protection of the personal data of every natural person, without prejudice to granting special protection to special categories of personal data. Thus, although the unauthorized access affects the name, surname, ID number, and address for notification purposes of the claimant, the AYUNTAMIENTO was obliged to ensure due confidentiality as personal data is considered to be "any information relating to an identified or identifiable natural person," in accordance with Article 4.1 of the GDPR.

The AYUNTAMIENTO indicates that it was the media, specifically a journalist, who disseminated the personal data of the claimant by publishing a tweet with a photograph that included part of the documentation submitted by them; in no case was it the AYUNTAMIENTO that disclosed it.

In this regard, this Agency wishes to mention the Judgment of the Court of Justice of the European Union in the Fashion ID case, C-40/17, ECLI:EU:2018:1039, which establishes in its paragraph 74 that "On the other hand, and without prejudice to any potential civil liability provided for in national law in this regard, that natural or legal person cannot be considered responsible, within the meaning of that provision, for the preceding or subsequent operations in the processing chain with respect to which it does not determine the purposes or means." That is, any

processing operation that is carried out...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/22

In the context of the CITY COUNCIL, this must be attributed solely to it, regardless of any processing operations that may have been carried out previously by other parties, which in no case exempts it from its responsibility.

For all the above reasons, this allegation is dismissed.

IV

Security of Processing

Article 32 of the GDPR, "Security of Processing," establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

In this case, the lack of appropriate technical and organizational measures to ensure a level of security appropriate to the risk is evident.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/22

regarding personal data. This means that the CITY COUNCIL, at the time of the security breach, did not have the appropriate measures in place.

It should be noted that the GDPR in the cited provision does not establish a list of security measures applicable according to the data being processed, but rather states that the data controller and the processor shall apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of the technical and organizational measures must be made

considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (which are not audits), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

“In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or processor must assess the risks inherent in the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial harm.”

Recital 75 of the GDPR lists a series of factors or situations associated with risks to the guarantees of the rights and freedoms of data subjects:

“The risks to the rights and freedoms of natural persons, of varying severity and probability, may arise from the processing of data that could cause physical, material, or immaterial harm, particularly in cases where the processing could lead to issues of discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of...”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
18/22

pseudonymization or any other significant economic or social harm; in cases where the data subjects are deprived of their rights and freedoms or prevented from exercising control over their personal data; in cases where the processed personal data reveal ethnic or racial origin, political opinions, religion or philosophical beliefs, union membership, and the processing of genetic data, health data, or data concerning sexual life, or criminal convictions and related security measures; in cases where personal aspects are evaluated, particularly the analysis or prediction of aspects related to work performance, economic situation, health, personal preferences or interests, reliability or behavior, situation or movements, with the aim of creating or using personal profiles; in cases where personal data of vulnerable individuals, particularly children, are processed; or in cases where the processing involves a large amount of personal data and affects a large number of data subjects.”

In this regard, searching the internet, for example, for the name, surname, ID number, or address of the affected individual may yield results that, when combined with those accessed by third parties, allow access to other applications of the affected individual or the creation of personality profiles, which may not have been consented to by the data subject. The liability of the respondent is determined by the lack of security measures, as they are responsible for making decisions aimed at effectively implementing appropriate technical and organizational measures to ensure a level of security adequate to the risk to safeguard the confidentiality of the data, restoring its availability and preventing access to it in the event of a physical or technical incident.

The known facts constitute an infringement attributable to the CITY COUNCIL, for violation of Article 32 of the GDPR.

V

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes one of the infringements

classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;

b)

(...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/22

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

VI

Integrity and confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

In relation to this principle, Recital 39 of the GDPR states that:

"[...] Personal data must be processed in a manner that ensures an adequate level of security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used for processing."

In the present case, it is noted that a third party has accessed the personal data of the complainant contained in documents submitted to the CITY COUNCIL's Registry. The tweet published by the journalist in question was accompanied by an image that turns out to be a photograph of a copy of one of the five documents submitted to that Registry, in which the name, surname, ID number, address for notification purposes of the complainant, and the stamps of the Post Office, the General Entry Registry of the City Council, and the Area to which the document is addressed are visible (when enlarged). All of the above demonstrates, as indicated in previous sections, that the CITY COUNCIL did not adequately guarantee the confidentiality and integrity of the personal data of the complainant.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/22

The known facts constitute an infringement attributable to the AYUNTAMIENTO, for violation of Article 5.1.f) of the GDPR.

VII

Classification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of one of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VIII

Proposal for sanction

Article 83 "General conditions for the imposition of administrative fines" of the GDPR in its paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Furthermore, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/22

"1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

a) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed. The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, if applicable, and to the affected parties who have the status of interested parties, if applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable. Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall

include a reprimand naming the responsible position and shall order publication in the corresponding Official State or regional Gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

It is appropriate to sanction the AYUNTAMIENTO with a warning for the infringements of Articles 5.1.f) and 32 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on AYUNTAMIENTO DE PALMA, with NIF P0704000I, a warning sanction for the infringements of:

- Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

- Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/22

SECOND: NOTIFY this resolution to the CITY COUNCIL OF PALMA, with NIF P0704000I.

THIRD: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-250923

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es